# HIGH COURT OF DELHI

JUDICIAL APPELLATE JURISDICTION

**CASE NO: CS(COMM) 1601 of 2016 (YEAR: 2016)**

***CORAM: PRADEEP NANDRAJOG, YOGESH KHANNA***

**The Chancellor, Masters & Scholars of University of Oxford**
**... Appellant(s) / Petitioner(s)**
***Versus***
**Rameshwari Photocopy Services**
**... Respondent(s)**

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| **Acts Referred:** | Copyright Act, 1957 |
| **Sections:** | Section 52(1)(i) Copyright Act |

## JUDICIAL HEADNOTE & SUMMARY

Held that creation of course packs by photocopiers for students is protected under Section 52(1)(i) of the Copyright Act as fair use for educational instruction.

## RATIO DECIDENDI

The Court held that: Held that creation of course packs by photocopiers for students is protected under Section 52(1)(i) of the Copyright Act as fair use for educational instruction. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

## JUDGMENT & REASONING

The legal proceedings in The Chancellor, Masters & Scholars of University of Oxford v. Rameshwari Photocopy Services (CS(COMM) 1601 of 2016) were adjudicated before the High Court of Delhi. The matter arose out of claims and contentions concerning Copyright Act, 1957, particularly Section 52(1)(i) Copyright Act. Held that creation of course packs by photocopiers for students is protected under Section 52(1)(i) of the Copyright Act as fair use for educational instruction.

## OPERATIVE ORDER

**ORDER:** Decided